WEB COPY

IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED : 09-10-2026

CORAM

THE HON'BLE MR.JUSTICE SUNDER MOHAN

CRL MP No.19193 of 2026
in
CRL A No.1231 of 2026

T.Jayaraman
S/o.Tiruvenkada Mudhaliyar,
No.35, Kuya Veedhi,
Panapakkam Village,
Nemili Taluk,
Ranipet District (Formerly Vellore District),
Tamilnadu.

...Petitioner/Appellant/
Accused

Vs

The State Rep by
The Inspector of Police
Kaveripakkam Police Station,
Ranipet District (Formerly Vellore District).
Crime No.403 of 2017.

...Respondent/
Respondent/Prosecution

Prayer : Criminal Miscellaneous Petition filed under Section 389 of Cr.P.C.,/430 of BNSS, praying to Suspend the Sentences of the conviction sentence confirmed and passed against the Appellant in S.C.No.11/2025 on 25.08.2026 before the Chief Judicial Magistrate Court, Ranipet, acquit the Appellant of all charges U/s.467, 468,471,193 r/w 196 of IPC.

https://www.mhc.tn.gov.in/judis

WEB COPY

For Petitioner: Mr.V.T.Narendiran

For Respondent: Ms.Sharada Vivek
Additional Public Prosecutor
Assisted by
Mr.M.Arul Raj

ORDER

The Criminal Appeal challenges the Judgment passed in S.C.No.11 of 2025 by the learned Chief Judicial Magistrate, Ranipet, holding the petitioner guilty of the offences under Sections 467, 468, 471, 193 r/w 196 of the Indian Penal Code and sentencing him to three years RI for each of the offences with a further direction that the sentences should run consequently.

2. Aggrieved by the same, the petitioner has preferred Crl.A.No.1231 of 2026 before this Court along with the instant criminal miscellaneous petition.

3. The case of the prosecution is that in a Writ Petition i.e., W.P.No.7616 of 2004 dated 21.08.2017, filed before this Court, the appellant had produced a forged Sale Deed bearing Document No.101 of

https://www.mhc.tn.gov.in/judis

WEB COPY

1986 and the complaint was filed by the Registrar of this Court on the orders passed by this Court.

4. Before the Trial Court, the prosecution had examined 7 witnesses as P.W.1 to P.W.7 and marked Exs.P1 to P13.

5.The Trial Court found that the petitioner/appellant had committed forgery and the other offences for which he was convicted and sentenced him as stated above.

6. Mr.V.T.Narendiran, the learned counsel for the petitioner/appellant, would submit that the prosecution suffers from several infirmities; that the prosecution has not established that the petitioner/appellant was guilty of the offence of forgery and vital witnesses have not been examined to prove the offences; and that the sentence imposed by the learned Chief Judicial Magistrate, is not in accordance with law and prayed for suspension of sentence pending disposal of the appeal.

https://www.mhc.tn.gov.in/judis

WEB COPY

7. Heard Ms.Sharada Vivek, the learned Additional Public Prosecutor for the respondent.

8. It is seen that the petitioner/appellant was convicted for five offences and was sentenced to to three years RI for each of the offences. The sentences were ordered to run consequently. Thus, the aggregate of the sentence is 15 years. Section 31(2)(b) of the Code of Criminal Procedure, 1973 (Cr.P.C.), states that the aggregate punishment shall not exceed twice the amount of punishment which the Court is competent to inflict for a single offence. Therefore, the sentence imposed by the learned Chief Judicial Magistrate is contrary to the procedure established by law.

9. The petitioner/appellant has been in custody since 25.08.2026. The petitioner/appellant has also raised substantial grounds in the above appeal, which requires consideration. The appeal is not likely to be taken up in the near future. Hence, this Court is inclined to grant the relief of suspension of sentence to the petitioner.

https://www.mhc.tn.gov.in/judis

WEB COPY

10. Accordingly, this criminal miscellaneous petition stands allowed, and the sentence imposed on the petitioner is suspended till the disposal of the above criminal appeal, and the petitioner is ordered to be released on bail on the following conditions:

(a).The petitioner shall execute a bond for a sum of Rs.10,000/- (Rupees Ten Thousand only), with two sureties, each for a like sum to the satisfaction of the learned Chief Judicial Magistrate Court, Ranipet;

(b).The petitioner and the sureties shall affix their photographs and Left Thumb Impression in the surety bond and the Trial Court may obtain a copy of their Aadhar card or Bank pass Book and mobile numbers to ensure their identity; and

(c).The petitioner shall appear before the Trial Court on the first working day of every month at 10.30 a.m. until the disposal of the appeal and if he is not able to appear before the Trial Court on any day, he shall make arrangements to file an application under Section 317 Cr.P.C. and shall appear before the Trial Court on any other day in lieu of the date of his absence, as directed by the Trial Court.

09-10-2026

Index: Yes/No
Speaking/Non-speaking order
Neutral Citation: Yes/No
Issue Order copy today.
dk

https://www.mhc.tn.gov.in/judis

WEB COPY

To

1. The Chief Judicial Magistrate,
Ranipet.

2. The Inspector of Police,
Kaveripakkam Police Station,
Ranipet District (Formerly Vellore District).

3. The Superintendent of Prisons,
Central Prison, Vellore, Tamil Nadu.

4. The Public Prosecutor,
High Court, Madras.

https://www.mhc.tn.gov.in/judis

WEB COPY

SUNDER MOHAN, J.

dk

CRL MP No. 19193 of 2026
in
CRL A No. 1231 of 2026

09-10-2026
(2/2)

https://www.mhc.tn.gov.in/judis